RIGHTS AND LIABILITIES OF THE GOVERNMENT

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR → SUCCESSION, OWNERLESS PROPERTY AND → ARTICLES 298 AND 299 → DEFECTIVE CONTRACT AND RESTITUTION → ARTICLE 300 AND THE → PRIVATE TORT AND THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

00

STAGE 00

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON · ROOT QUESTION · HOW CAN THE STATE EXERCISE PUBLIC POWER YET REMAIN · PART XII, CHAPTER III · ARTICLES 294-297 · SUCCESSION, OWNERLESS AND MARITIME PROPERTY · ARTICLE 298 · TRADE, BUSINESS, PROPERTY AND CONTRACT CAPACITY

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can the State exercise public power yet remain answerable as a legal actor?
- PART XII, CHAPTER III

POWER / PROCEDURE

- Articles 294-297 — succession, ownerless and maritime property
- Article 298 — trade, business, property and contract capacity
- Article 299 — mandatory government-contract form

CHECK / LIMIT

- Article 300 — suits, proceedings and liability continuity.
- SEPARATE LINK
- Article 300A — private property may be deprived only by authority of law.

FEDERAL / RIGHTS IMPACT

- MASTER DISTINCTION official personal protection != governmental immunity from review or liability.
- MUST REMEMBER: Keep Articles 294-300 legal capacity, Article 300A property protection and
- Article 361 personal immunity on separate constitutional tracks.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 361 personal immunity on separate constitutional tracks.

01

STAGE 01

SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION

SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION · ARTICLES 294-295 COMMENCEMENT CONTINUITY · UNION/STATE SUCCEEDS TO PROPERTY, RIGHTS AND LIABILITIES. · ARTICLE 296 ESCHEAT/LAPSE/BONA VACANTIA · LOCATION RULE + GOVERNMENTAL-PURPOSE PROVISO. · ARTICLE 297 SPECIFIED MARITIME LANDS, MINERALS AND RESOURCES · LATER REORGANISATION STATUTE/AGREEMENT · ASSETS + DEBT + GUARANTEES + EMPLOYEES

ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.

ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso. → ARTICLE 297 specified maritime lands, minerals and resources → Union. → LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

POWER / PROCEDURE

- ARTICLE 297 specified maritime lands, minerals and resources → Union.
- LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CHECK / LIMIT

- contracts/licences + records + pending proceedings.
- TRAP no universal apportionment formula; use the exact reorganisation instrument.

FEDERAL / RIGHTS IMPACT

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

MECHANISM / VERDICT — ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental purpose proviso.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP no universal apportionment formula; use the exact reorganisation instrument.

02

STAGE 02

ARTICLES 298 AND 299: CAPACITY BEFORE VALID COMMITMENT

ARTICLES 298 AND 299 · CAPACITY BEFORE VALID COMMITMENT · ARTICLE 298 EXECUTIVE CAPACITY TO TRADE, DO BUSINESS, ACQUIRE/HOLD/DISPOSE · ARTICLE 299 MANDATORY FORM EXPRESSED IN PRESIDENT/GOVERNOR'S NAME EXECUTED · VALID PUBLIC COMMITMENT · NO PERSONAL LIABILITY OF HEAD/AUTHORISED SIGNATORY. · TRAP CAPACITY · PERSONAL IMMUNITY

ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on → behalf of that constitutional head authorised person and prescribed manner. → valid public commitment → no personal liability of head/authorised signatory.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.
- ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on

POWER / PROCEDURE

- behalf of that constitutional head authorised person and prescribed manner.
- valid public commitment → no personal liability of head/authorised signatory.

CHECK / LIMIT

- TRAP capacity != authority
- signature != authorisation

FEDERAL / RIGHTS IMPACT

- personal immunity != State immunity.
- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP capacity != authority | signature != authorisation | personal immunity != State immunity.

03

STAGE 03

DEFECTIVE CONTRACT AND RESTITUTION

DEFECTIVE CONTRACT AND RESTITUTION · ARTICLE 299 DEFECT PURPORTED CONTRACT UNENFORCEABLE AS GOVERNMENT CONTRACT. · INDEPENDENT SECTION 70 ROUTE LAWFUL ACT/DELIVERY + NON-GRATUITOUS INTENTION · RESTITUTION MEASURED BY BENEFIT. · B.K. MONDAL & SONS (1961) NON-GRATUITOUS BENEFIT CAN CREATE · MULAMCHAND V. STATE OF MADHYA PRADESH (1968) MANDATORY ARTICLE · LIMIT QUANTUM MERUIT DOES NOT VALIDATE THE CONTRACT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 299 DEFECT purported contract unenforceable as government contract.	restitution measured by benefit.	Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.	ARTICLE 299 DEFECT purported contract unenforceable as government contract.
INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit	B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.	LIMIT quantum meruit does not validate the contract or automatically award contract price.	INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 299 DEFECT purported contract unenforceable as government contract.
- INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

POWER / PROCEDURE

- restitution measured by benefit.
- B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.

CHECK / LIMIT

- Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.
- LIMIT quantum meruit does not validate the contract or automatically award contract price.

FEDERAL / RIGHTS IMPACT

- ARTICLE 299 DEFECT purported contract unenforceable as government contract.
- INDEPENDENCE SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT quantum meruit does not validate the contract or automatically award contract price.

04

STAGE 04

ARTICLE 300 AND THE CIVIL-SUIT ROUTE

ARTICLE 300 AND THE CIVIL-SUIT ROUTE · PROPER PARTY · UNION MATTER · UNION OF INDIA · STATE MATTER · NAME OF STATE. · CPC SECTION 79 PARTY DESCRIPTION IN GOVERNMENT LITIGATION. · CPC SECTION 80 ORDINARY OFFICIAL-ACT SUIT

CONSTITUTIONAL BASIS / ARTICLE

- PROPER PARTY
- Union matter → Union of India
- State matter → name of State.

POWER / PROCEDURE

- CPC SECTION 79 party description in government litigation.
- CPC SECTION 80 ordinary official-act suit → two-month prior notice
- Section 80(2) court-controlled urgent/immediate-relief route.

CHECK / LIMIT

- PROCEEDING cause of action → correct party → notice/exception → pleading/evidence
- decree/appeal/enforcement subject to law.
- TRAP procedural notice != substantive sovereign immunity.

FEDERAL / RIGHTS IMPACT

- CPC SECTION 79 party description in government litigation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROCEEDING cause of action → correct party → notice/exception → pleading/evidence.

05

STAGE 05

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY · P & O STEAM NAVIGATION (1861) COLONIAL SOVEREIGN/NON-SOVEREIGN DISTINCTION. · STATE OF RAJASTHAN V. VIDYAWATI (1962) ORDINARY OPERATIONAL NEGLIGENCE · KASTURI LAL V. STATE OF UTTAR PRADESH (1964) OLDER · N. NAGENDRA RAO & CO. (1994) BROAD IMMUNITY UNTENABLE · VERDICT NO BLANKET FORMULA · IDENTIFY FUNCTION, DUTY, CAUSATION AND REMEDY · CLOSE DISTINCTION

P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction. → State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability. → Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line. → N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is → VERDICT no blanket formula: identify function, duty, causation and remedy.

CONSTITUTIONAL BASIS / ARTICLE

- P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.
- State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

POWER / PROCEDURE

- Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.
- N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is narrow.

CHECK / LIMIT

- VERDICT no blanket formula: identify function, duty, causation and remedy.
- CLOSE DISTINCTION: Separate a valid Article 299 contract. Contract Act section 70 restitution, private tort, constitutional tort and judicial review.

FEDERAL / RIGHTS IMPACT

- P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.
- State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

MECHANISM / VERDICT — VERDICT no blanket formula: identify function, duty, causation and remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Separate a valid Article 299 contract, Contract Act section 70 restitution, private tort, constitutional tort and judicial review.

06

STAGE 06

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY · PUBLIC-LAW COMPENSATION · RUDUL SAH V. STATE OF BIHAR (1983) · UNLAWFUL DETENTION COMPENSATION. · NILABATI BEHERA V. STATE OF ORISSA (1993) · FUNDAMENTAL-RIGHT REMEDY DISTINCT. · STATE OF ANDHRA PRADESH V. CHALLA RAMKRISHNA REDDY (2000) · PRISON-RIGHTS ACCOUNTABILITY.

PUBLIC-LAW COMPENSATION

Rudul Sah v. State of Bihar (1983) → unlawful detention compensation. → Nilabati Behera v. State of Orissa (1993) → Fundamental-Right remedy distinct. → State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

CONSTITUTIONAL BASIS / ARTICLE

- PUBLIC-LAW COMPENSATION
- Rudul Sah v. State of Bihar (1983) → unlawful detention compensation.
- Nilabati Behera v. State of Orissa (1993) → Fundamental-Right remedy distinct.

POWER / PROCEDURE

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)
- prison-rights accountability.
- PRIVATE TORT duty + breach + causation + damage + vicarious-employment nexus.

CHECK / LIMIT

- OFFICIAL RESPONSIBILITY
- State liability may coexist with disciplinary, criminal or personal liability.
- LIMIT writ compensation vindicates rights; it does not replace every civil trial.

FEDERAL / RIGHTS IMPACT

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT writ compensation vindicates rights; it does not replace every civil trial.

07

STAGE 07

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES · ARTICLE 300A DEPRIVATION OF PRIVATE PROPERTY ONLY BY AUTHORITY · PROCUREMENT RAIL NEED/SANCTION · FAIR CRITERIA/COMPETITION · REASONED AWARD · ARTICLE 299 EXECUTION · ARBITRATION VALID AUTHORISED CLAUSE · STATUTORY CHALLENGE/ENFORCEMENT.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 300A deprivation of private property only by authority of law.	ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.	Article 299 signatory rule	GeM/manual/draft reform != constitutional or statutory amendment.
PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award	PROTECTION FIREWALL	CPC notice	
Article 299 execution → performance/payment → CAG/audit.	Article 361	privilege are separate sources with separate limits.	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 300A deprivation of private property only by authority of law.
- PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award
- Article 299 execution → performance/payment → CAG/audit.

POWER / PROCEDURE

- ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.
- PROTECTION FIREWALL
- Article 361

CHECK / LIMIT

- Article 299 signatory rule
- CPC notice
- privilege are separate sources with separate limits.

FEDERAL / RIGHTS IMPACT

- GeM/manual/draft reform != constitutional or statutory amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 361 | Article 299 signatory rule | CPC notice | sanction | privilege are separate sources with separate limits.

08

STAGE 08

ARTICLE 300A: ACQUISITION DISCIPLINE AND SEVEN SAFEGUARDS

ARTICLE 300A · ACQUISITION DISCIPLINE AND SEVEN SAFEGUARDS · ARTICLE 300A EVERY PERSON · NO DEPRIVATION OF PROPERTY EXCEPT BY AUTHORITY OF LAW. · K.T. PLANTATION (2011) PUBLIC PURPOSE + NO ARBITRARY/CONFISCATORY LAW · VIDYA DEVI (2020) UNSUPPORTED EXECUTIVE OCCUPATION · LAWFUL ACQUISITION. · BIMAL KUMAR SHAH (2024 INSC 435) NOTICE

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 300A every person → no deprivation of property except by authority of law.
- K.T. Plantation (2011) public purpose + no arbitrary/confiscatory law + no illusory compensation.

POWER / PROCEDURE

- Vidya Devi (2020) unsupported executive occupation != lawful acquisition.
- Bimal Kumar Shah (2024 INSC 435) notice → hearing → reasoned decision → public purpose

CHECK / LIMIT

- fair compensation/restitution → efficient process → conclusion.
- TRAP constitutional right outside Part III; neither a Fundamental Right nor a mere statutory right.

FEDERAL / RIGHTS IMPACT

- ARTICLE 300A every person → no deprivation of property except by authority of law.
- K.T. Plantation (2011) public purpose + no arbitrary/confiscatory law + no illusory compensation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP constitutional right outside Part III; neither a Fundamental Right nor a mere statutory right.

09

STAGE 09

STATE SECRETS: EVIDENCE PRIVILEGE AND RTI ARE DISTINCT

STATE SECRETS · EVIDENCE PRIVILEGE AND RTI ARE DISTINCT · LITIGATION-EVIDENCE ROUTE · BSA SECTION 129 · UNPUBLISHED OFFICIAL RECORDS CONCERNING AFFAIRS OF STATE. · BSA SECTION 130 · OFFICIAL CONFIDENCE WHERE PUBLIC INTEREST WOULD SUFFER. · RAJ NARAIN (1975) + S.P. GUPTA (1981)

LITIGATION-EVIDENCE ROUTE → BSA section 129 — unpublished official records concerning affairs of State. → BSA section 130 — official confidence where public interest would suffer. → Raj Narain (1975) + S.P. Gupta (1981) — no absolute executive secrecy. → RTI ROUTE section 8(1)(a) specified prejudicial harms

CONSTITUTIONAL BASIS / ARTICLE

- LITIGATION-EVIDENCE ROUTE
- BSA section 129 — unpublished official records concerning affairs of State.

POWER / PROCEDURE

- BSA section 130 — official confidence where public interest would suffer.
- Raj Narain (1975) + S.P. Gupta (1981) — no absolute executive secrecy.

CHECK / LIMIT

- RTI ROUTE section 8(1)(a) specified prejudicial harms
- section 8(2) public-interest override

FEDERAL / RIGHTS IMPACT

- section 22 priority over inconsistent law, including Official Secrets Act.
- DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

10

STAGE 10

CHOOSE THE CORRECT REMEDY AND PROTECTION

CHOOSE THE CORRECT REMEDY AND PROTECTION · START WITH THE WRONG, NOT A BLANKET IMMUNITY VALID · DEFECTIVE FORM + RETAINED BENEFIT! · SECTION 70 RESTITUTION. · OPERATIONAL CIVIL WRONG · PRIVATE TORT. · FUNDAMENTAL-RIGHT VIOLATION · PUBLIC-LAW COMPENSATION.

START WITH THE WRONG, NOT A BLANKET IMMUNITY valid contract breach → contract/arbitration.

defective form + retained benefit → section 70 restitution. → operational civil wrong → private tort. → Fundamental-Right violation → public-law compensation.

CONSTITUTIONAL BASIS / ARTICLE

- START WITH THE WRONG, NOT A BLANKET IMMUNITY valid contract breach → contract/arbitration.
- defective form + retained benefit → section 70 restitution.
- operational civil wrong → private tort.
- Fundamental-Right violation → public-law compensation.

POWER / PROCEDURE

- property deprivation → Article 300A + acquisition-law remedy.
- illegal administrative decision → judicial review.
- PROCEDURE / PROTECTION FIREWALL
- CPC 79 proper party

CHECK / LIMIT

- CPC 80 notice/urgent route
- BNSS 218 sanction
- Article 361
- Article 299(2)

FEDERAL / RIGHTS IMPACT

- BSA 129-130.
- Each source has its own trigger, decision-maker, limit and remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Each source has its own trigger, decision-maker, limit and remedy.

11

STAGE 11

UPSC SYNTHESIS: NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW

UPSC SYNTHESIS · NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW · PRELIMS FIREWALL · 294/295 SUCCESSION · 296 OWNERLESS PROPERTY · 297 MARITIME RESOURCES · 298 CAPACITY · 299 FORM

PRELIMS FIREWALL → 294/295 succession → 296 ownerless property → 297 maritime resources → 298 capacity

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- 294/295 succession
- 296 ownerless property
- 297 maritime resources
- 298 capacity

POWER / PROCEDURE

- 300 suits
- 300A property right
- Section 70 restitution != valid contract
- Section 80 notice != immunity.
- MAINS SPINE legal person → property/succession → capacity/form

CHECK / LIMIT

- constitutional tort → procurement/arbitration → qualified reform.
- PYQ SPINE
- 2025 immunity statements test source separation, not blanket State immunity.
- VERDICT public power carries special form and protection, but remains legally answerable.
- CURRENT CONTROL: 5 SEPTEMBER 2026

FEDERAL / RIGHTS IMPACT

- Article 300A compensation. Contract, restitution, tort, constitutional compensation, review and official protection remain separate routes.
- LEGAL/SOURCE LIMIT: The official constitutional and procedural texts remain controlling: 2025
- INSC 3 reinforces timely adequate compensation under Article 300A.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT public power carries special form and protection, but remains legally answerable.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 1. THE STATE AS A LEGAL PERSON · 2. PUBLIC AND PRIVATE LAW REMEDIES · 3. ARTICLE 299 AND RELATIONAL CONTRACTING · 4. RESTITUTION WITHOUT AN ENFORCEABLE CONTRACT · 5. SOVEREIGN IMMUNITY AND INSTITUTIONAL INCENTIVES · 6. VICARIOUS LIABILITY AND PERSONAL FAULT · 7. PROCUREMENT AS CONSTITUTIONAL ADMINISTRATION

OPTIONAL DOCTRINE / CASE

- 1. The State as a legal person
- 2. Public and private law remedies
- 3. Article 299 and relational contracting
- 4. Restitution without an enforceable contract

ADVANCED LIMIT

- 5. Sovereign immunity and institutional incentives
- 6. Vicarious liability and personal fault
- 7. Procurement as constitutional administration
- 8. Arbitration and sovereign accountability

COMPARATIVE NUANCE

- 9. Reorganisation and succession
- 10. Reform framework
- force majeure and change in law;
- termination for public interest;

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels